

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Monday, August 31, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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26CV-02464	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Default Prove Up Hearing

Appearance required.

26CV-02859	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Motion to Set Aside Default and Vacate Default Judgment

Appearance required.

26CV-02933	Roger Accornero vs. Grassland Water District
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Motion to Strike

Defendant Grassland Water District's unopposed motion to strike the prayer for punitive damages at page 8, line 21 of the complaint is GRANTED without leave to amend. Punitive damages are not recoverable against Defendant, a government entity. (Gov.

Code, § 818.) Defendant is directed to prepare and submit a written order consistent with the Court's ruling for the Court's signature, as required by law and the California Rules of Court.

Demurrer to Complaint

Defendant Grassland Water District's unopposed general demurrer to the first cause of action on the ground it does not allege sufficient facts to constitute a cause of action for breach of contract is **SUSTAINED**. It is undisputed that Plaintiff does not allege in the complaint that he is a party to, or a third-party beneficiary of, the alleged contract between Defendant and the U.S. Department of the Interior (see paragraphs 9, 10, and 22 of the complaint) with the necessary standing to sue Defendant for breach of contract.

Defendant's unopposed general demurrer to the second cause of action for "breach of duty" on the ground it does not allege sufficient facts to constitute a cause of action is **SUSTAINED**. Breach of duty is an element of the tort of negligence and is not an independently recognized cause of action under California law. Further, all tort causes of action against public entities are based on statute. The Government Claims Act abolishes all common law tort liability against government entities. (Gov. Code, § 815; *Leon v. County of Riverside* (2023) 14 Cal.5th 910, 918.)

Defendant's unopposed general demurrer to the third cause of action for negligence on the ground it does not allege sufficient facts to constitute a cause of action is **SUSTAINED**. Public entities are not subject to common law tort liability.

Defendant's unopposed general demurrer to the entire complaint on the ground it does not allege sufficient facts to constitute a cause of action is **SUSTAINED**. As stated above, public entities are not subject to common law tort liability and the complaint does not specifically identify the grounds for statutory liability against Defendant.

Plaintiff has not filed any written opposition indicating how he might amend the complaint to allege sufficient facts to constitute a viable cause of action against Defendant, therefore the general demurrer to the entire complaint and each cause of action is sustained without leave to amend. Defendant is directed to prepare and submit a written order consistent with the Court's ruling for the Court's signature, as required by law and the California Rules of Court.

26CV-03605

[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
